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Research Brief

The Community-Development Gap in FERC Docket RM26-4-000

What 3,500 Pages of Federal Comments on Large-Load Interconnection
Did Not Address — and Why It Matters for Data Center Host Communities

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FERC Docket No. RM26-4-000 · Interconnection of Large Loads to the Interstate Transmission System

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EXECUTIVE SUMMARY

On April 16, 2026, the Federal Energy Regulatory Commission issued an Order Regarding Intent to Act in Docket No. RM26-4-000, committing to take action by the end of June 2026 on the interconnection of large electrical loads to the interstate transmission system. The proceeding, initiated by the Department of Energy under Section 403 of the DOE Organization Act in October 2025, has generated over 3,500 pages of public comments from approximately 175 unique organizations. Commission staff have reviewed this record and coordinated across federal agencies to prepare for what FERC has described as action that will be "quick, efficient, and legally durable."

This brief identifies a structural gap in that record. The overwhelming majority of filings address three sets of concerns: jurisdictional authority between federal and state regulators, cost allocation for network upgrades, and interconnection study timelines. These are necessary questions. They are not sufficient ones. No commenter in the docket has substantively addressed the community-infrastructure dimensions of large-load interconnection: workforce housing, school capacity, healthcare access, water system adequacy, transportation infrastructure, and the long-term viability of host communities that absorb facilities consuming as much electrical capacity as mid-sized cities.

This gap is most acute in Wyoming, where proposed data center developments would — if fully built — more than double the state's existing electrical generation capacity, yet Wyoming's Public Service Commission did not file comments in the docket. This brief presents a framework for evaluating the community-development dimensions of large-load interconnection and argues that durable federal rulemaking must account for the human infrastructure that makes host communities viable over multi-decade facility lifecycles.

I. REGULATORY BACKGROUND AND PROCEDURAL POSTURE

On October 23, 2025, Secretary of Energy Chris Wright directed FERC to consider an Advance Notice of Proposed Rulemaking on large-load interconnection, invoking a rarely used authority under Section 403 of the DOE Organization Act. The ANOPR proposes reforms to standardize how electrical loads exceeding 20 megawatts — including data centers, advanced manufacturing facilities, and hybrid generation-load configurations — connect to the interstate transmission system. The Secretary's directive requested final action by April 30, 2026.

FERC established the proceeding as Docket No. RM26-4-000, issuing a Notice Inviting Comments on October 27, 2025. Following requests for extension, the initial comment period closed November 21, 2025, with reply comments due December 5, 2025. The Commission received filings from utilities, grid operators, data center developers, industrial consumers, state regulatory commissions, consumer

advocates, reliability organizations, and trade associations.

The rulemaking represents an assertion of federal jurisdiction that FERC has historically not exercised. While FERC has maintained standardized interconnection procedures for generators since Order No. 888 and subsequent orders (2003, 845, 2023), load interconnection — how end-use customers connect to receive power — has remained under state jurisdiction. The ANOPR advances the position that large-load interconnections are analogous to generator interconnections and fall within FERC's authority over interstate transmission.

FERC did not meet the Secretary's April 30 deadline. On April 16, 2026, the Commission issued an Order Regarding Intent to Act, committing to action by the end of June 2026. The order catalogs interim steps already taken: a December 2025 order directing PJM Interconnection to implement co-location tariff provisions, a January 2026 approval of Southwest Power Pool's High Impact Large Load initiative, and action on multiple individual tariff filings. The Commission emphasized that its forthcoming action will establish standards for processing large-load interconnection requests and that generic rulemaking should not discourage utilities from filing independently under Federal Power Act Section 205.

II. THE JURISDICTIONAL FAULT LINE

The dominant tension in the docket record is the contest between federal and state regulatory authority. The National Association of Regulatory Utility Commissioners filed initial and reply comments opposing FERC's proposed assertion of jurisdiction over load interconnection. In its reply comments, NARUC reported that every one of the nineteen state public utility commissions that individually filed comments either opposed or expressed significant caution regarding the proposed expansion of federal authority.

The state commissions' position is grounded in the Federal Power Act's jurisdictional framework, which reserves to states the authority over retail rates, distribution systems, and end-use customer service. NARUC's Board of Directors adopted a formal resolution in November 2025 urging FERC to preserve state retail regulatory authority and ensure that large-load interconnections do not compromise grid reliability or impose undue costs on existing ratepayers. Individual state commissions — including the Organization of PJM States, the Missouri Public Service Commission, and the Kansas Corporation Commission — filed comments emphasizing that durable solutions may require joint state-federal regulation rather than unilateral federal assertion of control.

On the other side, data center developers and technology companies favor a stronger federal role to reduce friction, shorten timelines, and manage transmission system impacts that extend beyond state boundaries. The Data Center Coalition expressed support for a standardized process. Microsoft stated that timely access to electric power supplies remains the biggest obstacle to deploying advanced computing technology in the United States.

The legal durability of any FERC action faces scrutiny under the major questions doctrine articulated in *West Virginia v. EPA* and the elimination of Chevron deference under *Loper Bright Enterprises v. Raimondo*. Several commenters noted that FERC's own precedent highlights the jurisdictional

ambiguity: in rejecting a Tri-State Generation and Transmission Association large-load tariff filing, the Commission stated that certain aspects of the proposal appeared to "present an impermissible intrusion on retail rate regulation."

III. WYOMING'S REGULATORY SILENCE

Among the state commissions that did not file comments in the docket is the Wyoming Public Service Commission. This absence is significant in proportion to the scale of large-load development proposed within Wyoming's borders.

Wyoming's existing electrical generation capacity stands at approximately 10,200 megawatts. Current in-state demand from homes, businesses, mines, refineries, and manufacturers consumes roughly 40 percent of that capacity, with the balance exported. Against this baseline, proposed data center developments in Wyoming include:

Developer / Project	Location	Proposed Capacity
Crusoe / Tallgrass (Project Jade)	Laramie County (south of Cheyenne)	1,800 MW initial; scalable to 10,000 MW
Prometheus Hyperscale & partners	Southwest Wyoming (Evanston area)	1,200 MW
Microsoft	Cheyenne area	Multi-phase expansion (ongoing)
Meta	Cheyenne area	Multi-phase expansion (ongoing)

Sources: Laramie County Board of Commissioners proceedings (January 2026); WyoFile reporting (August 2025); Wyoming Public Media reporting (January 2026). Capacity figures represent developer announcements and are subject to permitting, financing, and grid-availability constraints.

The first phase of Project Jade alone — at 1,800 megawatts — would represent more than five times the electrical consumption of all approximately 238,000 homes in Wyoming. If all proposed developments reached full build-out, the aggregate demand would exceed the state's total existing generation capacity. No other state in the docket faces a comparable ratio of proposed large-load demand to existing generation baseline.

Several of these developments pursue what industry participants describe as "islanding" — constructing private power generation facilities that operate without grid interconnection. The Wyoming PSC holds regulatory authority over such generation facilities, but as Wyoming Public Media reported in January 2026, regulated utilities have expressed frustration that they lack regulatory power over the broader picture, particularly regarding load forecasting in a future where islanded data centers may eventually seek grid integration or depart entirely.

The Wyoming Energy Authority convened a stakeholders' working group to develop consensus recommendations on the regulatory approach. Deputy Chairman Chris Petrie of the Wyoming PSC has

publicly acknowledged the complexity of cost allocation, stating that ensuring costs are allocated to the party that causes them is "a super complicated, involved affair when you're actually doing it." The Wyoming Office of Consumer Advocate, an independent division within the PSC, has examined the question of ratepayer impact and stated that it does not foresee a scenario where residential or commercial customers would be asked to pay higher rates for capital investments made to serve data centers — but noted that indirect effects from aggregate demand growth and coal plant retirements may influence natural gas prices.

Despite this extensive in-state activity, Wyoming's PSC filed no comments in the federal docket that will establish the framework governing how these very facilities interconnect — or choose not to interconnect — with the transmission system.

IV. THE COMMUNITY-DEVELOPMENT GAP IN THE DOCKET RECORD

A review of the principal comment categories in the docket reveals a record organized almost entirely around three axes: jurisdictional authority (federal vs. state), economic mechanisms (cost allocation, participant funding, credit-back structures), and process engineering (study timelines, queue management, threshold definitions). These are technical questions addressed by technically qualified parties. The Halcyon analysis of the 175 initial comment filings identified six core topic areas; none of them address community infrastructure.

The ANOPR itself proposes fourteen guiding principles. The later principles address transition planning, reliability standards, consumer protection, and the treatment of existing agreements. Yet the framework does not require — or even invite — analysis of what happens to the physical communities where large loads concentrate. A 1,800-megawatt data center campus is not merely an electrical load on a transmission system. It is an employer, a water consumer, a traffic generator, a housing-market force, and a tax-base participant in a specific county, school district, and health-services region.

The FERC proceeding is not designed to regulate community planning — and this brief does not argue that it should. Rather, the argument is that interconnection standards that ignore community-infrastructure capacity produce outcomes that are technically efficient but operationally fragile. A facility that secures grid access but locates in a community without adequate workforce housing, schools, healthcare, or water infrastructure will face recruitment failures, local opposition, and political risk that undermine the "timely and orderly" interconnection the ANOPR is designed to achieve. The community-development dimension is not adjacent to the rulemaking. It is upstream of it.

V. A COMMUNITY-DEVELOPMENT STANDARD FOR LARGE-LOAD HOST COMMUNITIES

Maven Solutions has developed a comprehensive evaluation framework — the Polar-Grade Community-Development Standard — designed to assess and score the readiness of host communities to absorb large-load facilities across ten integrated dimensions. The framework draws on

historical precedent from master-planned community development, including the design principles applied by George Mitchell in the development of The Woodlands, Texas, and integrates them with the specific infrastructure demands of hyperscale data center operations.

The ten dimensions of the standard are:

- 1. Electrical Infrastructure & Grid Capacity.** Transmission access, generation adequacy, redundancy, and upgrade pathways.
- 2. Water Systems & Cooling Infrastructure.** Supply sourcing, consumption modeling, wastewater treatment, and aquifer impact.
- 3. Workforce Housing.** Availability, affordability, and pipeline capacity for construction and permanent operations workforces.
- 4. Education & Schools.** K-12 capacity, enrollment forecasting, and capital funding mechanisms for school districts absorbing population growth.
- 5. Healthcare Access.** Hospital capacity, emergency services, behavioral health infrastructure, and provider recruitment.
- 6. Transportation & Logistics.** Road capacity, freight routing, construction traffic management, and long-term commuter infrastructure.
- 7. Environmental & Land Use.** Air quality permitting, wildlife corridor preservation, agricultural land conversion, and noise/light mitigation.
- 8. Economic Design & Tax Base.** Revenue distribution, tax incentive structures, community benefit agreements, and long-term fiscal sustainability.
- 9. Regulatory & Governance.** State commission capacity, local permitting frameworks, inter-agency coordination, and public participation mechanisms.
- 10. Community Resilience & Lifecycle Planning.** Facility decommissioning provisions, economic diversification, stranded-asset risk, and multi-decade community viability.

Each dimension is designed to be evaluated independently and scored against defined readiness criteria, producing a composite community-readiness assessment that can inform interconnection planning, site selection, regulatory review, and community benefit negotiations. The standard does not prescribe outcomes; it provides a structured evaluation methodology that surfaces infrastructure gaps before they become operational constraints or sources of community opposition.

VI. IMPLICATIONS FOR THE RULEMAKING AND STAKEHOLDERS

The FERC proceeding in RM26-4-000 will continue generating filings, compliance deadlines, and related state-level proceedings beyond the June 2026 action. Several law firms monitoring the docket

have noted that the Commission's forthcoming order could affect jurisdictional authority, interconnection processes, treatment of co-located load and generation, and cost allocation principles. If FERC issues a Notice of Proposed Rulemaking — which multiple analysts consider the most likely form of action given the jurisdictional complexity — a formal comment period of 60 to 90 days will follow, during which stakeholders can submit detailed responses to proposed rules.

Concurrently, the North American Electric Reliability Corporation has filed an accelerated large-load action plan with FERC, targeting revised registry criteria and reliability standards by December 31, 2026. NERC's March 2026 whitepaper on gaps in existing practices for emerging large loads, along with its planned Level 3 Alert, represents a parallel track that will establish reliability requirements independent of the interconnection-process reforms in RM26-4-000.

For data center developers, the implication is that federal rules are being written now — across multiple proceedings — that will define the regulatory environment for the next decade. Developers who engage early in shaping those rules will operate within a framework they helped design. Those who do not will comply with one they did not.

For state regulators, the implication is that absence from the federal record is not neutrality. Wyoming's PSC, overseeing what may be the single most disproportionately affected state in the nation, has not placed its perspective, its concerns, or its existing regulatory tools on the federal record. The Commission's large-load tariff framework — developed through the Black Hills Energy / Microsoft relationship dating to 2015 and recognized with a 2018 Smart Energy Decisions Innovation Award — is an operational precedent that the federal rulemaking could learn from. That precedent is currently invisible to the FERC proceeding.

For host communities, the implication is the one this brief is designed to surface: federal interconnection rules that do not account for community-infrastructure readiness will produce facilities that are grid-legal but community-fragile. The community-development standard proposed here is offered as a tool for ensuring that the regulatory frameworks being built in 2026 account for the full set of infrastructure systems that make large-load facilities viable — not merely the electrical ones.

VII. PRINCIPAL SOURCES

1. U.S. Department of Energy, "Ensuring the Timely and Orderly Interconnection of Large Loads," Advance Notice of Proposed Rulemaking, Docket No. RM26-4-000 (October 23, 2025).
2. Federal Energy Regulatory Commission, Notice Inviting Comments, Docket No. RM26-4-000 (October 27, 2025).
3. Federal Energy Regulatory Commission, Notice Granting Extension of Time, Docket No. RM26-4-000 (November 7, 2025).
4. National Association of Regulatory Utility Commissioners, Initial Comments, Docket No. RM26-4-000 (November 21, 2025).
5. National Association of Regulatory Utility Commissioners, Reply Comments, Docket No. RM26-4-000 (December 5, 2025).
6. National Association of State Utility Consumer Advocates, Reply Comments, Docket No. RM26-4-000 (December 5, 2025).
7. North American Electric Reliability Corporation, Accelerated Large Load Action Plan, Supplement to Initial Comments, Docket No. RM26-4-000 (March 20, 2026).
8. Federal Energy Regulatory Commission, Order Regarding Intent to Act, Docket No. RM26-4-000 (April 16, 2026).
9. Federal Energy Regulatory Commission, Order on PJM Co-Located Load Compliance Filing, Docket No. EL25-49-000 (April 16, 2026).

10. Halcyon, "Parsing FERC RM26-4-000: Large Load Interconnection" (December 3, 2025).
11. Center for Strategic and International Studies, "What's at Stake in FERC's Large Load Proposal?" (December 19, 2025).
12. WyoFile, "Utilities Brace for Staggering Power Demands from AI, Data Centers in Wyoming" (August 20, 2025).
13. Wyoming Public Media, "Bigger Data Centers Are Coming. How Can Wyoming Get Ahead of the Boom?" (January 16, 2026).
14. Wyoming Public Media, "Wyoming County Approves Construction of What Could Become the Largest Data Center in the US" (January 20, 2026).
15. Wyoming Outdoor Council, White Paper on Data Center Policy in Wyoming (November 2025).

About Maven Solutions. Maven Solutions is a consulting practice founded in 2014 specializing in technical program management, delivery operations, and governance for AI infrastructure and technology deployments. Principal Jayne Algermissen brings over fifteen years of program management experience across enterprise technology, M&A integration, and AI platform operations, including engagements with Fortune 500 companies and mission-driven organizations.

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